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under the extension granted, shall either furnish to the collector of customs for the district in which the merchandise is warehoused the agreement of the sureties on such bond to remain bound under the terms and provisions of the bond to the same extent as if no extension were granted, or furnish an additional bond with acceptable sureties to cover the period of extension.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the United States to be affixed.

DONE at the City of Washington this 21st day of December, in the year of our Lord nineteen hundred and thirty-four, and [SEAL] of the Independence of the United States of America the one hundred and fifty-ninth.

FRANKLIN D ROOSEVELT

By the President:
CORDELL HULL
Secretary of State.

[No. 2110]

MERCHANDISE IN BONDED WAREHOUSE

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

December 22, 1934.

A PROCLAMATION

WHEREAS section 318 of the Tariff Act of 1930 (46 Stat. 696) provides: Bonded warehouses.

"Whenever the President shall by proclamation declare an emergency to exist by reason of a state of war, or otherwise, he may authorize the Secretary of the Treasury to extend during the continuance of such emergency the time herein prescribed for the performance of any act * * *" Time extension during emergency. Vol. 46, p. 696.

AND WHEREAS section 557 of the said act provides: Vol. 46, p. 744.

"Any merchandise subject to duty, with the exception of perishable articles and explosive substances other than firecrackers, may be entered for warehousing and be deposited in a bonded warehouse at the expense and risk of the owner, importer, or consignee. Such merchandise may be withdrawn, at any time within three years (or ten months in the case of grain) from the date of importation, for consumption upon payment of the duties and charges accruing thereon at the rate of duty imposed by law upon such merchandise at the date of withdrawal * * * *Provided*, That the total period of time for which such merchandise may remain in bonded warehouse shall not exceed three years (or ten months in the case of grain) from the date of importation." Entry for warehousing. Withdrawal. Time limit.

NOW, THEREFORE, I, Franklin D. Roosevelt, President of the United States of America, acting under and by virtue of the authority invested in me by the foregoing provision of section 318 of the Tariff Act of 1930, do by this proclamation declare an emergency to exist. Emergency declared.

And I do hereby authorize the Secretary of the Treasury, until further notice, to extend the warehousing period for all merchandise (except grain) imported during the calendar year 1932 and entered for warehousing under section 557 of the Tariff Act of 1930 for not more than 1 year from and after the expiration of the 3-year period prescribed in sections 557 and 559 of the said act: *Provided, however*, That in each and every case the Secretary of the Treasury shall require that the principal on the warehouse-entry bond, in order to obtain the Warehousing period for merchandise imported during 1932 extended. *Proviso.* Conditions imposed.

benefits under the extension granted, shall either furnish to the collector of customs for the district in which the merchandise is warehoused the agreement of the sureties on such bond to remain bound under the terms and provisions of the bond to the same extent as if no extension were granted, or furnish an additional bond with acceptable sureties to cover the period of extension.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the United States to be affixed.

DONE at the City of Washington, this 22d day of December, in the year of our Lord nineteen hundred and thirty-four, [SEAL] and of the Independence of the United States of America the one hundred and fifty-ninth.

FRANKLIN D ROOSEVELT

By the President:
CORDELL HULL
Secretary of State.

[No. 2111]

FORT JEFFERSON NATIONAL MONUMENT—FLORIDA

January 4, 1935.

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

A PROCLAMATION

Fort Jefferson National Monument, Fla. Preamble.

WHEREAS it appears that the public interest would be promoted by revoking Executive Order No. 779, of April 6, 1908, creating the Dry Tortugas Keys Reservation; and by revoking (1) the Executive order of September 17, 1845, creating the Dry Tortugas Military Reservation, insofar as it relates to the Dry Tortugas group of islands, and (2) Executive Order No. 1613, of September 23, 1912, insofar as it closes the harbor of Tortugas, Florida, to navigation, and (3) Executive Order No. 5281, of February 17, 1930, insofar as it forbids air navigation over the said harbor; and by including the Dry Tortugas group of islands within a national monument for the preservation of Fort Jefferson and the historic and educational interest contained in such area:

Revoking designated Executive orders relating to the Dry Tortugas group of islands.

NOW, THEREFORE, I, FRANKLIN D. ROOSEVELT, President of the United States of America, do hereby revoke the aforesaid Executive Order No. 779, of April 6, 1908; and I do hereby revoke (1) the aforesaid Executive order of September 17, 1845, insofar as it relates to the Dry Tortugas group of islands, and (2) Executive Order No. 1613, of February 23, 1912, insofar as it closes the harbor of Tortugas, Florida, to navigation, and (3) Executive Order No. 5281, of February 17, 1930, insofar as it forbids air navigation over said harbor.

National monument set apart. Vol. 34, p. 225. U. S. C., p. 651.

And under and by virtue of the authority vested in me by section 2 of the act of June 8, 1906 (34 Stat. 225; U. S. C., title 16, sec. 431), I do proclaim that, subject to all existing rights and to the existing reservation for lighthouse purposes affecting a portion thereof, the area indicated on the diagram hereto attached and forming a part hereof is hereby reserved from all forms of appropriation under the public-land laws and set apart as the Fort Jefferson National Monument.